



File No.: EXP202314247

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 26/08/2023. The complaint is directed against IBERDROLA CLIENTES, S.A.U. with NIF A95758389 (hereinafter, the respondent). The reasons for the complaint are as follows: the claimant states that their personal data is registered in common credit information systems at the request of the respondent due to a debt with which they do not agree, and for which they have never been requested to pay nor informed about the possibility of including their data in these systems.

Along with their complaint, they submitted a report from ASNEF dated 28/03/2023, which includes their data at the request of the respondent, and emails exchanged with the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 18/10/2023 as stated in the acknowledgment of receipt in the file.

The respondent replied indicating that the inclusion of the data in the ASNEF file was legitimate; that on 02/01/2023 the claimant was notified of the complaint filed by the now claimant regarding their gas and electricity contracts, indicating disagreement with the amounts charged. The complaints were answered by the respondent; on 06/02/2023 a negative creditor invoice was issued for the amount of -53.09 €, in order to cancel the invoice dated 25/01/2023 for the amount of 53.09 € that was the subject of the complaint. However, due to an error in the system, this amount was not offset against the amount owed by the claimant, but was directly credited to their bank account, resulting in a deposit, which is why the payment request for the amount remained in effect; that as payment was not made, their data was communicated to the ASNEF default file after the aforementioned request was made; that for the same matter, a consumer complaint was received from the Community of Madrid, to which a response was provided on 11/10/2023 stating that the inclusion in the ASNEF file occurred after more than a month had passed since the payment deadline for the invoices, without payment having been made.

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2/18

THIRD: On 26/11/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On 08/04/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

FIFTH: Upon notification of the initiation agreement, the respondent requested an extension of the deadline for submissions; this deadline was extended by another five days through a written communication from the instructor dated 03/05/2024. The respondent submitted a written statement of allegations dated 08/05/2024, summarizing that both parties signed a gas supply contract on 19/10/2022; on 31/12/2022, the claimant communicated disagreement with the maintenance package, requesting cancellation, and similarly, the change of supplier was agreed upon, although they were informed of the penalties associated with early cancellations, and for this reason, invoices for both concepts were sent; a payment request was also sent for the unpaid invoices indicating the

consequences of non-payment, including the possibility of reporting the debt to the ASNEF delinquency file; subsequently, after inclusion in the file, a claim was received from the claimant, which was responded to by the respondent, informing them of the nature of the pending invoices; the respondent was legitimized to claim the owed debt since, in accordance with Article 20 of the LOPDGDD, the established requirements for such presumption of legality were met, this processing being ancillary to the contract and necessary for its execution, requesting the file to be closed.

SIXTH: On 22/05/2024, the instructor of the proceedings agreed to open a period for the practice of evidence, agreeing on the following:

- To consider the complaint filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file as reproduced for evidentiary purposes.
- To consider the allegations to the initiation agreement presented by the respondent and the accompanying documentation as reproduced for evidentiary purposes.

SEVENTH: On 30/10/2024, a Proposal for Resolution was issued stating that the Director of the Spanish Agency for Data Protection should sanction the respondent for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, with a fine of €200,000 (two hundred thousand euros). On 17/12/2024, the respondent submitted a written statement of allegations indicating that they had informed the claimant that in the event of non-payment, they would proceed to include the data in the ASNEF file in various ways: in the gas supply contract signed by both parties where this possibility is stated in clause 7; via email through the issued invoices that went unpaid and through the payment request made on 14 March 2024, which has been submitted to the file, demonstrating that the legitimacy established by Article 20.1 c) of the LOPDGDD is fully accredited by meeting the requirements set forth therein; regarding the postal notification of the payment request, it was rejected at the destination, meaning it was not due to an error in delivery, but rather that the person who was to receive it refused to accept the corresponding certified letter, as noted in the acknowledgment.

EIGHTH: From the actions taken in this procedure, the following have been established:

PROVEN FACTS

FIRST. On 26/08/2023, a written communication from the claimant was received at the AEPD stating that their personal data was registered in common credit information systems at the request of the respondent for a debt with which they do not agree, and for which they have never been requested to pay or informed about the possibility of including their data in these systems.

SECOND. A gas supply contract No. ***REFERENCE.1 signed between the respondent and the claimant has been submitted.

THIRD. A document from ASNEF dated 28/03/2023 has been submitted, indicating: We inform you that on 27/03/2023, the respondent requested the registration in the ASNEF file of the following personal data related to the non-payment of the contract they maintain with this entity:

PRODUCT UNPAID AMOUNT

QUALITY

ELECTRICITY GAS

113.89

DEBTOR

FOURTH. Crossed emails between the claimant and the respondent regarding the claimed facts have been submitted:

Sent: 10/04/2023

Subject: Inclusion in ASNEF:

“(…)

I recently received communication in ASNEF to include me in this file at your request.

I would appreciate it if you could inform me of the amount you are claiming, for what concept, and when you notified me of the required prior communication before inclusion in this file.

(…)”

Response from the respondent:

“(…)

Following your instructions, I attach the pending invoices for the gas contract ***REFERENCE.1, I

highlight in red the invoice for which you have been included in the ASNEF files, the last notification for the payment of this invoice was sent to you on 01/03/2023, in which it was indicated that the last date for payment was 11/03/2023:

Date. Inv. Amount Balance Status

25/01/2023 53.09 53.09

113. Pending, Not direct debit, Payment request letter sent

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4/18

31/01/2023 60.80 60.80 123. Pending. Direct debit at bank, Requirement letter sent

I detail below the pending invoices from the electricity contract ***REFERENCE.2:

Date of Invoice Amount Balance Status

10/11/2022 1.53 5.27 126 Pending, Direct debit at bank, Manual resend

For payment, I can send you the link for the one you indicate via SMS/email. In this case, I would appreciate it if you could provide me with the phone number to send it to or the email. This way you will receive a link that you will need to click on, which will take you to a screen where the filled-in data will appear. You will need to choose the payment method (Bizum/Card) and enter the credit card details (card number/Expiration date and CVV).

(...)

Claimant:

"I need you to attach the invoices and provide me with the tracking number of the shipment with the communication."

Respondent:

"Thank you again for your message, I am sending you the pending invoices requested. In case you do not find them in your inbox, please check your Spam or junk mail.

Regarding the tracking number, we do not have that information; you would need to contact ASNE directly for them to provide it."

Claimant:

"It is mandatory by law that if Iberdrola is going to include me in the delinquent files, they notify me through a reliable communication (certified mail or burofax). I need those tracking numbers; otherwise, I could claim damages for their inclusion."

FIFTH. It is recorded that the respondent provided a Payment Requirement, dated 01/03/2023, with code ***REFERENCE.3, sent to the claimant, which states:

"(...)

We notify you of the requirement for payment of the debt you have incurred of 113.89 euros, arising from pending payment invoices for the gas supply with contract ***REFERENCE.1 that you have subscribed with us at ***ADDRESS.1:

(...)

What happens if the non-payment persists from March 11, 2023?

From the due date of the unpaid invoice, late interest and additional recovery costs have begun to accrue.

The debt may be reported to the delinquent file ASNEF managed by ASNEF EQUIFAX INFORMATION SERVICES ON SOLVENCY AND CREDIT SL - N.I.F.: B82064833.

We will be obliged to initiate legal actions to claim the debt.

(...)"

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5/18

SIXTH. A Certification of Delivery Impossibility is recorded, dated 03/04/2023, issued by Correos, which states:

“(…)

Correos CERTIFIES that, according to the Information System

Your shipment ***REFERENCE.3, accepted on 10/03/2023

To: the claimant

(…)

Has been Returned to Origin due to excess (not collected at the office) on 03/04/2023 at 08:21

By the employee...

Delivery management by the Unit...

1st Delivery attempt on 14/03/2023 at 12:13...”

SEVENTH. The contract provided states the following regarding the maintenance pack:

GAS MAINTENANCE PACK

(…)

The duration of the GAS MAINTENANCE PACK will be one (1) year, automatically renewable for consecutive annual periods unless the CLIENT communicates otherwise with fifteen (15) days' notice

prior to the end of each period.

(…)

The early termination of the GAS MAINTENANCE PACK by the CLIENT's decision

before the conclusion of each annual service period will obligate them to pay the established price for the entire current annual period that has not yet been paid, maintaining the right to use the service during that period.

(…)

Monthly price: 8.95 € (VAT not included). This price will be automatically updated

on January 1 of each year in which the contract is in force, with the variation corresponding to the CPI(1)

(...)”

EIGHTH. The contract provided states the following regarding its duration:

DURATION OF THE CONTRACT

Contract end date: 16/5/2023.

The start date is conditioned on the existence of an access contract with the distributor and on actions on the installations when necessary; it will be the first day of the established reading period, which will be

indicated in the first invoice.

The Contract may be extended for successive annual periods in accordance with the General Conditions.

In case of termination due to unilateral withdrawal by either party during the first year of the contract's validity, the withdrawing party must pay the other a penalty of 0.4 €/remaining day of the contract.

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6/18

NINTH. Invoice no. ***REFERENCE.4, dated 31/01/2023, has been submitted as a penalty for early termination in the amount of 60.80 euros.

TENTH. Invoice no. ***REFERENCE.5, dated 25/01/2023, has been submitted as Maintenance

Service Gas Regularization of maintenance fees due to early termination of the Gas Service in the amount of 53.09 euros.

LEGAL GROUNDS

I

Jurisdiction

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Allegations to the Resolution Proposal

The party being claimed in the written allegations states that it not only informed the complainant of the possible consequences arising from a situation of non-payment in the contract signed between the parties, but also that the invoices including the amounts pending payment were notified to the claiming party; these invoices were notified to them via email with details through a direct link to their Customer Area.

Additionally, as a follow-up to the previous, notification was made through a payment demand on 14/03/2024. This document includes both the amount pending payment and reiterates that in case of non-payment, their data could be communicated to the ASNEF delinquency file, thus fully complying with the obligation to inform the interested party about the possibility of inclusion in a credit information file, thereby ensuring the transfer in the process.

It is true, as stated by the claimed party, that the contract signed by both parties with No.

***REFERENCE.1, for the supply of gas and the service called "Gas Maintenance Pack," includes in clause 7 both the consultation and the communication of their data to files referred to as delinquent in case of non-payment: "IBERDROLA may consult files of financial solvency and credit to assess the economic solvency of the Client and based on these consultations, adopt decisions that affect them, being able to condition the entry into force of the Contract or its validity to the establishment of a payment guarantee. However, IBERDROLA will always grant the Client the opportunity to allege anything they deem appropriate in order to defend their right or interest. In case of non-payment, IBERDROLA may communicate it to such files, complying with current legislation."

It is also true that through an email dated 10/04/2023, subsequent to the sending of the payment demand, in response to the requesting party's inquiry regarding the ASNEF communication about the inclusion of their data in the file, the claiming party was sent invoices no. ***REFERENCE.4, dated 31/01/2023, as a penalty for early termination in the amount of 60.80 euros, and no.

***REFERENCE.5, dated 25/01/2023, for maintenance fees due to early termination of the Gas Service in the amount of 53.09 euros.

Lastly, the payment demand dated 01/03/2023, with code ***REFERENCE.3, sent to the claiming party, attempts to notify the non-payment of the debt incurred in the amount of 113.89 euros, arising from previous invoices pending payment, and where it was indicated that in case of non-payment, the debt could be communicated to the ASNEF delinquency file and judicial actions could be initiated to claim the debt.

In response to these allegations, it should be noted that the facts related to the postal notification of the payment demand have not been disproven by the claimed party despite the statements made that since the payment demand route was not successful and with the intention of not causing misinformation to the claiming party, they proceeded to inform about the pending invoices via email dated 10/04/2023, that is, after the inclusion in the file.

Article 20.1.c) of the LOPDGDD mentions as one of the requirements for inclusion the prior payment

demand, not the delivery of invoices.

As was informed in the Resolution Proposal, the claimed party has provided the Certification of impossibility of delivery, dated 03/04/2023, issued by the postal service, which stated:

“(…)

Correos CERTIFIES that, according to the Information System

Your shipment ***REFERENCE.3, accepted on 10/03/2023

For: the claiming party

(…)

Has been Returned to Origin due to surplus (not collected at the office) on 03/04/2023 at 08:21

By employee 379964 having the following associated information:

Delivery management by the Unit...

1st Delivery attempt on 14/03/2023 at 12:13 by employee 379964 has resulted in 07 No one is responsible”

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8/18

The payment demand is issued on 01/03/2023, but it is not accepted for dispatch by the Postal Service until 10/03/2023, and it also indicated that:

What happens if the non-payment persists from 11 March 2023?

From the due date of the unpaid invoice, late interest and additional recovery costs have begun to accrue.

The debt may be reported to the ASNEF delinquency file managed by ASNEF EQUIFAX INFORMATION SERVICES ON SOLVENCY AND CREDIT SL - N.I.F.: B82064833.

We will be obliged to initiate legal actions to claim the debt.

A first delivery attempt is made on 14/03/2023, without any success, so a notice is left for the communication to be picked up from the post office, where it will remain until its return to origin on 03/04/2023.

However, the claimed party requests registration in ASNEF on 27/03/2023 without the claiming party having received the payment demand and without the Postal Office having returned to origin due to surplus (not picked up at the office) on 03/04/2023, from the Certification of impossibility of delivery of the payment demand with code ***REFERENCE.3; therefore, as indicated in the Proposal, it was not considered appropriate and pertinent, but rather the opposite, to issue a demand for non-payment of debt on a specific date, 01/03/2023, deposit it in the postal service for dispatch to the claiming party on 10/03/2023, informing them therein that if non-payment persisted on the day following its deposit in the post office for dispatch (11/03/2023), the debt would be communicated to the ASNEF-EQUIFAX delinquency file and legal actions would be initiated to claim it.

Furthermore, the data was included in the file on 27/03/2023, without the claiming party having received the payment demand and prior to the return of the demand to origin on 03/04/2023 by the Postal Office.

Therefore, it follows that it has not been proven that the claimed party has complied with each of the requirements established in Article 20.1 of the LOPDGDD, which implies a violation of the obligation to have a legal basis for the processing of personal data as provided in Article 6.1 of the GDPR.

Therefore, the allegations made by the claimed party cannot be accepted.

III

Unfulfilled obligation: violation of Article 6.1 of the GDPR

The claimed facts materialize in the inclusion of the personal data of the claiming party in common credit information systems at the request of the claimed party, in relation to a debt linked to a gas contract, a debt with which the claiming party expresses disagreement, stating that they were not requested for payment prior to inclusion in the aforementioned files, which could imply a violation of the regulations on the protection of personal data.

C/ Jorge Juan, 6

9/18

Article 6 of the GDPR, Lawfulness of processing, in its paragraph 1 establishes that:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”

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10/18

And Article 20 of the LOPDGDD, Credit Information Systems, establishes that:

“1. Unless proven otherwise, the processing of personal data related to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

The entity maintaining the credit information system with data related to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation

(EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.

d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the date of maturity of the monetary, financial, or credit obligation.

e) That the data related to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.

When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system must inform the affected party of the result of that consultation.

2. The entities that maintain the system and the creditors, regarding the processing of data related to their debtors, shall have the status of joint controllers of the data processing, being subject to the provisions established by Article 26 of Regulation (EU) 2016/679.

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11/18

It shall be the responsibility of the creditor to ensure that the requirements for inclusion in the debt system are met, being liable for their non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where credit information is associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to carry out profiling, particularly through the application of credit scoring techniques.

1. It should be noted that the processing of data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, particularly when necessary for the execution of a contract in which the affected party is a party or for the application, at their request, of pre-contractual measures, or when necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or fundamental rights and freedoms of the affected party requiring the protection of such data. Processing is also considered lawful when necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

In this case, the initiation agreement considered that the claimed party had violated Article 6.1 of the GDPR as the unlawfulness of the processing carried out was evidenced, the inclusion of the claimant's data in common credit information systems, with no accredited legal basis for any of the provisions contained in the cited article in relation to the processing carried out.

2. The claimed party in a document dated 23/12/2023 states that both parties signed gas supply contract no. ***REFERENCE.1; from the aforementioned contract arises a debt linked to two concepts: a penalty for early termination of the gas contract, in the amount of 53.09 euros, and, secondly, a penalty for early termination of the Gas Maintenance Pack and its corresponding regularization in the amount of 60.80 euros, which together total 113.89 euros, a debt that was included in the so-called delinquent files. The unpaid invoices are provided: invoice no. ***REFERENCE.4, dated 31/01/2023

for the penalty for early termination in the amount of 60.80 euros and invoice no. ***REFERENCE.5, dated 25/01/2023 for Gas Maintenance Service Regularization of maintenance fees for early termination of the Gas Service in the amount of 53.09 euros.

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12/18

There is also a notification from the ASNEF file, dated 28/03/2023, addressed to the claimant indicating that the claimed party has requested the registration of the data in the ASNEF file as a result of the non-payment of the debt it maintains with them, amounting to 113.89 euros.

The claimed party has provided the payment demand, dated 01/03/2023, code ***REFERENCE.3, sent to the claimant,

“(…)

We notify you of the demand for payment of the debt you have incurred of 113.89 euros, arising from unpaid invoices for the gas supply with contract ***REFERENCE.1 that you have subscribed with us at ***ADDRESS.1:

(…)

Additionally, the Certification of impossibility of delivery, dated 03/04/2023, issued by the postal service, is provided, stating:

“(…)

The postal service CERTIFIES that, according to the Information System
Your shipment ***REFERENCE.3, accepted on 10/03/2023

For: the claimant

(…)

Has been Returned to Origin due to surplus (not collected at the office) on 03/04/2023 at 08:21

By the employee...

Delivery management by the Unit...

1st Delivery attempt on 14/03/2023 at 12:13...”

However, the payment demand is issued on 01/03/2023, but is not accepted for shipment by the postal service until 10/03/2023 and, to further clarify, it states:

What happens if the non-payment persists from 11 March 2023?

From the due date of the unpaid invoice, late interest and additional recovery costs have begun to accrue.

The debt may be reported to the ASNEF delinquency file managed by ASNEF EQUIFAX SERVICIOS DE INFORMACION SOBRE SOLVENCIA Y CREDITO SL - N.I.F.: B82064833.

We will be obliged to initiate legal actions to claim the debt.

It is noted that the delivery attempt is made on 14/03/2023, apparently without any success, so a notice is left for the communication to be collected from the postal office, where it will remain until its return to origin on 03/04/2023.

However, the claimed party requested the registration in the ASNEF file on 27/03/2023 without the claimant having received the payment demand, that is, the claimed party should have considered all the circumstances that occurred, since it is not the most appropriate to issue a payment demand for a debt on a certain date, deposit it in the postal service for shipment to the claimant, and informing therein that if on the day following its deposit...

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13/18

In the post office for its dispatch, the non-payment persisted, the debt was reported to the ASNEF delinquency file, and legal actions were initiated to claim the debt.

As indicated in the previous paragraph, the data was accessed in the file on 27/03/2023, without the claiming party having received the payment request and the unpaid debt, without taking into account the time for its delivery or the deadline for its payment; furthermore, access to the file occurred prior to the return of the request to the origin on 03/04/2023.

Therefore, it is considered that the conduct of the responding party infringes and has not complied with the requirement indicated in Article 20.1.c) of the LOPDGDD: “c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.”

In light of the above, it is concluded that the responding party has incurred a violation of the regulations regarding the protection of personal data, Article 6.1 of the GDPR, in relation to Article 20.1 of the LOPDGDD, an infringement classified in Article 85.3 of the GDPR.

III

Classification of the infringement of Article 6.1 of the GDPR

The infringement attributed to the responding party is classified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is sanctionable, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that they are: “Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

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14/18

IV

Proposal for sanction for non-compliance with Article 6.1 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the

affected parties;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/18

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a), for which the responding party is held responsible, the following factors are deemed concurrent:

The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity, and the level of harm suffered by the claiming party affects its economic solvency as it has been included in common credit information systems at the request of the responding party in relation to a debt, disregarding the requirements of Article 20 of the LOPDGDD, without allowing time for it to address the payment of the same (Article 83.2.a) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the responding entity, the processing of personal data is essential, so given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The intentionality or negligence in the infringement, as the responding party included the data in delinquent files without the debt meeting the requirements of Article 20 of the LOPDGDD. Also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into effect, its ruling is perfectly extrapolatable to the case we are

analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, it must be...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
16/18

"especially consider the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is necessary to insist on the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2, b) of the GDPR).

In accordance with the above, it is deemed appropriate to propose a sanction of 200,000 euros for the violation of Article 6.1 of the GDPR.

V

Applicable Measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it would be considered appropriate to order the respondent, within one month from the finality of the resolution that is issued in any case, to adjust the processing activities subject to this procedure to the applicable regulations. The text of this agreement establishes what the facts are that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. Specifically, they must comply with the requirements set forth in Article 20 of the LOPDGDD to legitimize the processing.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on IBERDROLA CLIENTES, S.A.U., with NIF A95758389, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of 200,000 € (two hundred thousand euros).

SECOND: TO ORDER IBERDROLA CLIENTES, S.A.U., with NIF A95758389, that pursuant to Article 58.2.d) of the GDPR, within 1 month from the date of this resolution,

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/18

the resolution shall be firm and enforceable, certifying that appropriate measures have been taken to

adapt the treatments subject to this procedure to the applicable regulations.

THIRD: NOTIFY this resolution to IBERDROLA CLIENTES, S.A.U.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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28001 – Madrid

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18/18